POWER OF ATTORNEY

Check appropriate box: ☐ Individual ☐ Partnership ☐ Corporation ☐ Sole Proprietorship ☐ LLC

KNOW ALL MEN BY THESE PRESENTS:

Legal Name:_____ Doing Business As (if applicable):_____

Street Address:_____

Telephone:_____ Email Address:_____

Birthdate:_____ Tax ID (EIN)/Social Security Number:_____

Hereby constitutes and appoints **BLUEBIRD CUSTOMS LLC**

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as a true and lawful agent and attorney of the grantor named above for and in the name, place, and stead of said grantor from the date and in CBP Port ALL and in no other name, top make endorse, sign declare, or swear to any entry, withdrawal, declaration, certificate, bill of lading, or other document required by law or regulation in connection with the importation, transportation, or exportation of any merchandise shipped or consigned by or to said grantor; to perform any act or condition which may be required by law or regulation in connection with such merchandise; to receive any merchandise deliverable to said grantor;

To make endorsements on bills of lading conferring authority to make entry and collect drawback, and to make, sign, declare, or swear to any statement, supplemental statement, schedule, supplemental schedule, certificate of delivery, certificate of manufacture, certificate of manufacture and delivery, abstract of manufacturing records, declaration of proprietor on drawback entry, declaration of exporter on drawback entry, or any other affidavit or document which may be required by law or regulation for drawback purposes, regardless of whether such bill of lading, sworn statements, schedule, certificate, abstract declaration, or other affidavit or document is intended for filing in said port or in any other CBP port;

To sign, seal, and deliver for and as the act of said grantor any bond required by law or regulation in connection with the entry or withdrawal of imported merchandise or merchandise exported with or without benefit of drawback, or in connection with the entry,

clearance, lading, unlading or navigation of any vessel or other means of voluntarily given and accepted under applicable laws and regulations consignee's and owner's declarations provided for in section 485, Tariff Act of 1930, as amended, or affidavits in connection with the entry of merchandise.

To sign and swear to any document and to perform any act that may be necessary or required by law or regulation in connection with the entering, clearing, lading, unlading, or operation of any vessel or other means of conveyance owned or operated by said grantor;

And generally to transact at the CBP houses in said port any and all CBP business, including making, signing, and filing of protests under section 514 of the Tariff Act of 1930, in which said grantor is or may be concerned or interested and which may properly be transacted or performed by an agent or attorney, giving to said agent and attorney full power and authority to do anything whatever requisite and necessary to be done in the premises as fully as said grantor could do if present and acting, hereby ratifying and confirming all that the said agent and attorney shall lawfully do virtue of these presents; the foregoing power of attorney to remain in full force and effect until one full year after date of signing, or until notice of revocation in writing is duly given to and received by the Port Director of CBP of the port aforesaid. If the donor of this power of attorney is a partnership, the said power shall in no case have any force or effect after the expiration of 2 years from the date of its receipt in the office of the Port Director of CBP of the said port.

IN WITNESS WHEREOF, the said (your name here):_____

Has caused these presents to be sealed and signed (sign here):_____

Capacity at company/self:_____ Date:_____

WITNESS name:_____

WITNESS signature:_____

Bluebird Customs

Duty Payments

As per 19CFR 141, Customs duties payments may be made either directly to Customs or through a licensed customs broker. Bluebird Customs will pay duties and fees for an additional fee.

Related/Not Related

CBP requires importers to declare whether imported merchandise is acquired in a transaction between related or not related persons. CBP defines related persons as:

1. Members of the same family, including brothers and sisters (whether by whole or half blood), spouse, ancestors, and lineal descendants.
2. Any officer or director of an organization, and that organization.
3. An officer or director of an organization and an officer or director or another organization, if each individual also is an officer or director in the other organization.
4. Partners.
5. Employer and employee.
6. Any person directly or indirectly owning, controlling, or holding with power to vote, five percent or more of the outstanding voting stock or shares of any organization, and that organization.
7. Two or more persons directly controlling, controlled by, or under common control with, any person.

Using the definition above, please check one:

☐ I am not related to any of my suppliers.

☐ I am related to the following suppliers:

(please list)

Record Keeping Requirements

The Customs Modernization and Informed Compliance Act (The Mod Act) requires all importers apply "reasonable care" to keep themselves informed of relevant import regulations. Separate from broker records, importers must retain all documents involved in each import transaction, including but not limited to Customs entry records, purchase orders, and communications with suppliers. Importers must retain proof of payment to suppliers and evidence of right to claim duty free exemptions (if applicable). All records may be stored as hard copies or computer-generated records and must be supplied to Customs if requested.

Shipping Payments and Customs Exams

All shipping and related payments are the responsibility of the importer. Bluebird will pay arrival fees as a service as time allows for an additional fee.

Some shipments may require Customs exams. All exam payments are the responsibility of the importer and will be paid by Bluebird Customs as a service as time allows, for an additional fee. Exam coordination incurs an additional fee.

Bluebird Hours

Monday-Friday 8:00 am – 4:00 pm Mountain Standard Time

Bluebird Customs requires all completed documents 2 full business days before import. Emergency and last-minute entries incur additional fees.



Bluebird Customs

Terms and Conditions of Service

I have read and agree to the terms and conditions set forth below.

These terms and conditions of service constitute a legally binding contract between the "Company" and the "Customer".

1.Definitions.

(a) "Company" shall mean Bluebird Customs, LLC, its subsidiaries, related companies, agents and/or representatives;
(b) "Customer" shall mean the person for which the Company is rendering service, as well as its principals, agents and/or representatives, including, but not limited to, shippers, importers, exporters, carriers, secured parties, warehousemen, buyers and/or sellers, shipper's agents, insurers and underwriters, break-bulk agents, consignees, etc. It is the responsibility of the Customer to provide notice and copy(s) of these terms and conditions of service to all such agents or representatives;
(c) "Documentation" shall mean all information received directly or indirectly from Customer, whether in paper or electronic form;
(d) "Third parties" shall include, but not be limited to, the following: "carriers, truckmen, cartmen, lightermen, forwarders, ocean transport intermediaries, customs brokers, agents, warehousemen and others to which the goods are entrusted for transportation, cartage, handling and/or delivery and/or storage or otherwise".

2. Company as Agent.

The Company acts as the "agent" of the Customer for the purpose of performing duties in connection with the entry and release of goods and post entry services on behalf of the Customer and other dealings with Government Agencies: as to all other services, Company acts as an independent contractor.

3. Limitation of Actions.

(a) Unless subject to a specific statute or international convention, all claims against the Company for a potential or actual loss, must be made in writing and received by the Company.
(b) All suits against Company must be filed and properly served on Company as follows:
(i)For claims arising out of the preparation and/or submission of an import entry(s), within seventy-five days from the date of liquidation of the entry(s);
(ii)For any and all other claims of any other type, within one year from the date of the loss or damage.

4.No Liability for the Selection or Services of Third Parties and/or Routes.

Unless services are performed by persons or firms engaged pursuant to express written instructions from the Customer, Company shall use reasonable care in its selection of third parties, or in selecting the means, route and procedure to be followed in the handling, transportation, clearance and delivery of the shipment; advice by the Company that a particular person or firm has been selected to render services with respect to the goods, shall not be construed to mean that the Company warrants or represents that such person or firm will render such services nor does Company assume responsibility or liability for any actions(s) and/or inaction(s) of such third parties and/or its agents, and shall not be liable for any delay or loss of any kind, which occurs while a shipment is in the custody or control of a third party or the agent of a third party; all claims in connection with the Act of a third party shall be

brought solely against such party and/or its agents; in connection with any such claim, the Company shall reasonably cooperate with the Customer, which shall be liable for any charges or costs incurred by the Company.

5.Quotations Not Binding.

Quotations as to fees, rates of duty, freight charges, insurance premiums or other charges given by the Company to the Customer are for informational purposes only and are subject to change without notice; no quotation shall be binding upon the Company unless the Company in writing agrees to undertake the handling or transportation of the shipment at a specific rate or amount set forth in the quotation and payment arrangements are agreed to between the Company and the Customer.

6.Reliance on Information Furnished.

(a) Customer acknowledges that it is required to review all documents and declarations prepared and/or filed with U.S. Customs & Border Protection (CBP), other Government Agency and/or third parties, and will immediately advise the Company of any errors, discrepancies, incorrect statements, or omissions on any declaration or other submission filed on Customers behalf;
(b) In preparing and submitting customs entries, export declarations, applications, security filings, documentation and/or other required data, the Company relies on the correctness of all documentation, whether in written or electronic format, and all information furnished by Customer; Customer shall use reasonable care to ensure the party, subject to the terms of the third party's limitations of liability and/or terms and conditions of service correctness of all such information and shall indemnify and hold the Company harmless from any and all claims asserted and/or liability or losses suffered by reason of the Customer's failure to disclose information or any incorrect, incomplete or false statement by the Customer or its agent, representative or contractor upon which the Company reasonably relied. The Customer agrees that the Customer has an affirmative non-delegable duty to disclose any and all information required to import or enter the goods.

7.Declaring Higher Value to Third Parties.

Third parties to whom the goods are entrusted may limit liability for loss or damage; the Company will request excess valuation coverage only upon specific written instructions from the Customer, which must agree to pay any charges therefore; in the absence of written instructions or the refusal of the third party to agree to a higher declared value, at Company's discretion, the goods may be tendered to the third party.

8.Insurance.

Company is under no obligation to procure insurance on Customer's behalf; in all cases, Customer shall pay all premiums and costs in connection with procuring requested insurance.

9.Disclaimers; Limitation of Liability.

(a) Except as specifically set forth herein, Company makes no express or implied warranties in connection with its services;
(b) In connection with all services performed by the Company, Customer may obtain additional liability coverage, up to the actual or declared value of the shipment or transaction, by requesting such coverage and agreeing to make payment therefor, which request must be confirmed in writing by the Company prior to rendering services for the covered transaction(s).
(c) In the absence of additional coverage under (b) above, the Company's liability shall be limited to $50.00 per entry or the amount of brokerage fees paid to Company for the entry, whichever is less;
(d) In no event shall Company be liable or responsible for consequential, indirect, incidental, statutory or punitive damages, even if it has been put on notice of the possibility of such damages, or for the acts of third parties.

10.Compensation of Company.

The compensation of the Company for its services shall be included with and is in addition to the rates and charges of all carriers and other agencies selected by the Company to transport and deal with the goods. In any referral for collection or action against the Customer for monies due the Company, upon recovery by the Company, the Customer shall pay the expenses of collection and/or litigation, including a reasonable attorney fee.

All charges must be paid by Customer in advance unless the Company agrees in writing to extend credit to customer; the granting of credit to a Customer in connection with a particular transaction shall not be considered a waiver of this provision by the Company.

If you are the importer of record, payment to the broker will not relieve you of liability for Customs charges (duties, taxes, or other debts owed CBP) in the event the charges are not paid by the broker. Therefore, if you pay by check, Customs charges may be paid with a separate check payable to the "U.S. Customs and Border Protection" which shall be delivered to CBP by the broker. Importers who wish to utilize this procedure must contact our office in advance to arrange for timely receipt of checks.

11.Indemnification/Hold Harmless.

The Customer agrees to indemnify, defend, and hold the Company harmless from any claims and/or liability, fines, penalties and/or attorneys' fees arising from the importation or exportation of customers merchandise and/or any conduct of the Customer, including but not limited to the inaccuracy of entry, export or security data supplied by Customer or its agent or representative, which violates any Federal, State and/or other laws, and further agrees to indemnify and hold the Company harmless against any and all liability, loss, damages, costs, claims, penalties, fines and/or expenses, including but not limited to reasonable attorney's fees, which the Company may hereafter incur, suffer or be required to pay by reason of such claims; in the event that any claim, suit or proceeding is brought against the Company, it shall give notice in writing to the Customer by mail at its address on file with the Company.

12.Costs of Collection.

In any dispute involving monies owed to Company, the Company shall be entitled to all costs of collection, including reasonable attorney's fees and interest at 18 % per annum or the highest rate allowed by law, whichever is less unless a lower amount is agreed to by Company.

13.General Lien and Right to Sell Customer's Property.

(a) Company shall have a general and continuing lien on any and all property of Customer coming into Company's actual or constructive possession or control for monies owed to Company with regard to the shipment on which the lien is claimed, a prior shipment(s) and/or both;
(b) Company shall provide written notice to Customer of its intent to exercise such lien, the exact amount of monies due and owing, as well as any on-going storage or other charges; Customer shall notify all parties having an interest in its shipment(s) of Company's rights and/or the exercise of such lien.
(c) Unless, within thirty days of receiving notice of lien, Customer posts cash or letter of credit at sight, or, if the amount due is in dispute, an acceptable bond equal to 110% of the value of the total amount due, in favor of Company, guaranteeing payment of the monies owed, plus all storage charges accrued or to be accrued, Company shall have the right to sell such shipment(s)at public or private sale or auction and any net proceeds remaining thereafter shall be refunded to Customer.

14.No Duty to Maintain Records for Customer.

Customer acknowledges that pursuant to Sections 508 and 509 of the Tariff Act, as amended, (19 USC §1508 and 1509) it has the duty and is solely liable for maintaining all records required under the Customs and/or other Laws and Regulations of the United States; unless otherwise agreed to in writing, the Company shall only keep such records that it is required to maintain by Statute(s) and/or Regulation(s), but not act as a "recordkeeper" or "recordkeeping agent" for Customer.

15.Obtaining Binding Rulings, Filing Protests, etc.

Unless requested by Customer in writing and agreed to by Company in writing, Company shall be under no obligation to undertake any pre- or post- Customs release action, including, but not limited to, obtaining binding rulings, advising of liquidations, filing of petition(s) and/or protests, etc.

16.No Modification or Amendment Unless Written.

These terms and conditions of service may only be modified, altered or amended in writing signed by both Customer and Company; any attempt to unilaterally modify, alter or amend same shall be null and void.

17.Automobile Exports to Canada.

Customer is responsible for export. Company is not the shipper, exporter/agent, or freight forwarder. Customer assumes responsibility for validity of all information supplied to Company and U.S. Customs, and is responsible for paying all taxes and fees related to vehicle export.

18.Severability.

In the event any Paragraph(s) and/or portion(s) hereof is found to be invalid and/or unenforceable, then in such event the remainder hereof shall remain in Full force and effect. Company's decision to waive any provision herein, either by conduct or otherwise, shall not be deemed to be a further or continuing waiver of such provision or to otherwise waive or invalidate any other provision herein.

19.Governing Law; Consent to Jurisdiction and Venue.

These terms and conditions of service and the relationship of the parties shall be construed according to the laws of the State of Utah without giving consideration to principals of conflict of law.

20.Customer and Company.

(a) irrevocably consent to the jurisdiction of the United States District Court and the State courts of Utah;
(b) agree that any action relating to the services performed by Company, shall only be brought in said courts;
(c) consent to the exercise of *in personam* jurisdiction by said courts over it, and
(d) further agree that any action to enforce a judgment may be instituted in any jurisdiction.

21.Company fees cover filing Customs paperwork only, and do not guarantee Customs clearance. Prepayment required for all services.

Signed:_____Date:_____